

03-Mar-25

Mr. Rohit Rawat
S/O: Vijay Singh,
H.No. 95-A, H-Block,
Divya Vihar, Ward No-50,
Ambiwala Gurudwara,Dhrampur,
Nehrugram, Dehradun,
Uttarakhand, 248005
Phone: 8630950613
Email: rohitrawat676@gmail.com

Sub: - Appointment as Software Engineer

Dear Rohit,

With reference to your application for employment and subsequent interview you had with us, we are pleased to offer you the position of **Software Engineer (Grade – B1)** of MPS Limited ("the Company") with effect from **03-Mar-25** on the following terms and conditions:

Following are the terms and conditions applicable to you:

1. PROBATION:

- 1.1. **You will be on probation for a period of six months from the date of your joining the duty.** The period of probation could be extended to a further period of six months or cut short, at the discretion of the management. On completion of the probationary period, including extensions, if any, unless your services are confirmed in writing, your probationary period shall be deemed to have been extended till you get a communication from the company in writing, confirming or terminating your services.
- 1.2. During the period of probation or at the end of it, your services are liable to be terminated by either party by giving **90 days' notice or 90 days' basic salary**, in lieu of notice.

2. REMUNERATION:

- 2.1 Your total cost to company per annum will be **INR 800004/- (Rupees Eight Lakh and Four Only)**. Please refer to the annexure enclosed for detailed breakup.

3. STATUTORY BENEFITS:

- 3.1. You will be eligible for the statutory benefits viz., Provident Fund and Gratuity, as per the applicable laws in India.
- 3.2. Annual Bonus: You will be entitled for annual bonus subject to company norms.

4. SERVICES:

- 4.1. You shall be required to perform certain services as required by the nature of your appointment. You will be required to perform these services in a professional, ethical and commercially reasonable manner meeting the expectation of the Company in terms of quality. The Company may provide quality specifications with respect to the services from time to time and these shall be strictly adhered to by you.
- 4.2. You shall perform the services under the general direction and instructions of the Company.

5. LEAVE:

- 5.1. You will be eligible for the MPS leave policy as per applicable to the employee of your cadre in the company.
- 5.2. You shall be entitled to leave only after obtaining written permission and any leave without such permission would amount to a breach of the terms of this Appointment Letter.

6. CONFIRMATION:

- 6.1. After completion of your probationary period with extension, if any, your services may be confirmed at the sole discretion of the management provided your overall performance, conduct, attendance etc., is found to be satisfactory, during the period of probation.
- 6.2. Confirmation of your services will be communicated to you, in writing.
- 6.3. On confirmation and thereafter, your services could be terminated by either party by giving **90 days' notice or 90 days' basic salary in lieu of notice**. However, the management reserves the right to relieve you either earlier than the notice period/only on completion of notice period.
- 6.4. In case you relinquish your employment with the Company without any notice, the Company shall have the right to deduct **90 days' basic salary** from any payment including the Bonus that may be due to you from the Company or recover it otherwise.

7. COMPLIANCE:

- 7.1. You undertake and agrees that you shall be responsible at all times for complying with all applicable laws and regulations with regard to the performance of the services in accordance with the terms and subject to the conditions of this Agreement

8. TRANSFER/DEPUTATION:

- 8.1. Your services are liable to be transferred/deputed from one place to another, one job to another, one department to another, one unit to another, one branch to another, one collaborator's factory/office to another, from one associate company to another and back and wherever the

Company's interest/s exists anywhere in India or abroad, which are there at present or would be established in future, at the discretion of the management.

9. NON-SOLICITATION:

9.1. During the term of your employment and for a period of one (1) year immediately thereafter following the termination of your employment with the Company for any reason, you shall not:

9.1.1. solicit or attempt to influence any person employed or engaged by the Company (whether as an employee, consultant, advisor or in any other manner) to terminate or otherwise cease such employment or engagement with the Company or become the employee of or directly or indirectly offer services in any form or manner to yourself or any person or entity who is a competitor of the Company;

9.1.2. solicit or cause or authorize, directly or indirectly, to be solicited for any competitive business, for or on behalf of any person or client or otherwise take any action that might divert the business or patronage of any client from the Company or otherwise damage or alienate the relationship between the Company and any such client;

9.1.3. directly or indirectly, use any name which is similar to the name of, or any trade name, service mark, trademark, logo or insignia used by the Company; and

9.1.4. make or publish any statement or communication which is disparaging, negative or unflattering with respect to the Company and its business and/or the Company's directors, consultants, officers, employees, agents or affiliates.

9.2. For the avoidance of doubt, it is hereby clarified that this Clause 9.1 shall survive the termination of this Agreement.

10. NON-COMPETITION:

10.1. You further agree that for a period of one (1) year immediately thereafter following the termination of your employment with the Company for any reason you shall not in any capacity, either separately or in association with others endeavor in any way to engage in the employment or into any sort of associations with any Clients or Customers or their Affiliates in a manner that is detrimental to the business interest of the Company.

11. SEVERABILITY:

11.1. If any provisions of this Agreement are held to be invalid, illegal or unenforceable, this will not affect the validity, legality or enforceability of the other provisions which shall remain in full force and effect and the parties shall amend such invalid provision or provisions as the case may be in such reasonable manner as achieves the intention of the parties without illegality.

12. GENERAL:

- 12.1. You will be governed by the service rules and regulations, human resource policies (including sexual harassment policies) of the Company that are in force at present and also that will be introduced from time to time.
- 12.2. Any waiver, modification, or amendment of any provision of this Agreement shall be effective only if in writing and signed by the Parties.
- 12.3. You will not engage yourself directly or through an agent any work, business, profession or employment either honorary or otherwise, which is competitive in nature to the business of the Company during the period of your employment with the Company.
- 12.4. You shall hold in fiduciary capacity for the benefit of the Company all information, knowledge, data obtained and realized in connection with the services rendered by you and you shall not divulge any such information, knowledge or data to any person, firm or corporation other than to the Company or any other person, firm or corporation designated by it. This clause shall survive the termination of your employment.
- 12.5. You will not disclose or divulge to any person/institution any information regarding the design, process, inspection, marketing techniques, trade secret, know-how and any other information related to our production process and other related functions to any person/company. Any conflict of any of the terms under this agreement and the terms of non-disclosure and confidentiality agreement (NDA), if any, executed separately between you and Company, the terms of NDA shall prevail.
- 12.6. In case, any information furnished by you, at the time of appointment, i.e., your qualification, previous experience, employment, salary or any other factors proved to be incorrect/false, your services will be liable for dismissal/any other action, as deemed fit by the management.
- 12.7. Your appointment and continuation in employment is subject to your remaining medically found fit. The management will reserve the right to get you examined/re-examined from any registered medical practitioner/surgeon/ physician of any hospital, whose advice shall be final and binding on you.
- 12.8. You will be the whole-time employee of the company and will not engage yourself in any other work either part time/full time/honorary or otherwise.
- 12.9. You will be responsible for all the activities that will be assigned to you in the section/division from time to time.
- 12.10. The management reserves the right to terminate your services with/without any notice or with/without any compensation if you are found to have indulged in acts prejudicial to the company's interest and/or any acts contrary to the rules and regulations of the company or to the general discipline and/or on loss of confidence in you.

13. EQUITABLE RELIEF:

- 13.1. In view of the fact that the services provided by you are personal and unique, and because you will have access to and become acquainted with the Confidential Information of the Company, you specifically agree and acknowledge that breach by you of this Agreement will result in irreparable harm to the Company and that the Company will have the right to enforce this Agreement and any of its Provisions by injunction, specific performance or other equitable relief without prejudice to any other rights and remedies in law that the Company may have.

14. INDEMNITY:

- 14.1. You agree to indemnify and keep indemnified the Company, its Directors or any other consultants employees or officers of the Company for any actions, proceedings, claims, demands, judgments, losses, liabilities, obligations, damages, costs and expenses imposed, asserted against or incurred by it arising out of any third party claim made in respect of the services provided by you or arising against all actions, proceedings, claims, demands, judgments, costs, charges and expenses which may be incurred, sustained or raised in respect of the non-performance of or non-observance of any of the undertakings, representations and warranties and agreements on your part herein contained.

15. RETIREMENT:

- 15.1. You will retire from the services of the company on attaining the age of years (Fifty-Eight years).
- 15.2. At the time of your retirement, the management at their sole discretion may or may not give extension, subject to your being found behaviorally good, work wise efficient and medically fit.

In case the above terms and conditions are agreeable to you, please sign and return the duplicate copy of this letter to us in token of your having read, understood and accepted the above terms and conditions within 7 days of receipt of this letter.

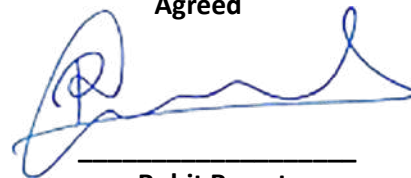
Yours faithfully,

For MPS Limited



Authorized Signatory

Agreed



Rohit Rawat

Annexure –A

Employee Name: Rohit Rawat
Employee ID: MAC012861
Designation: Software Engineer
Grade: B1
W.e.f.: 03-Mar-25

Salary Components	Amount in Rupees	
	Monthly	Annually
Basic	22000	264000
HRA	11000	132000
City Compensatory Allowance	11000	132000
Special Allowance	18409	220908
Sub Total (1) : Payroll Components	62409	748908
Annual Bonus	1400	16800
MPS Contribution to PF	1800	21600
Gratuity – as per statute	1058	12696
Sub Total (2) : Benefits	4258	51096
CTC	66667	800004

**The salary components may change and be adjusted towards other components of the salary structure to meet the applicable statutory regulations within the same CTC.*

Notes:

- (1) Annual Bonus will be paid as per the current policy.
- (2) You will be provided benefits under the "Group Medical Insurance" as per your eligibility.

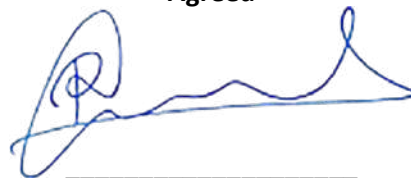
Yours faithfully,

For MPS Limited



Authorized Signature

Agreed



Rohit Rawat